

		get any money back.” (<i>Id.</i>, at p. 4.) The Consumer Attorneys of California commented in support of the bill. They wrote, “Several studies show that consumers read reviews before making a purchase; we agree that businesses should not attempt to block the transparency of this information to conceal potentially poor and unsatisfactory business practices.” (<i>Id.</i>, at p. 5.) In sum, the legislative history confirms that Civ. Code § 1748.50 concerns nondisclosure provisions required as a condition of refunds. B. <u>Application</u> The settlement agreement at issue resolved a personal injury claim sounding in products liability. The offending provision did not require confidentiality or non-disparagement as a condition of receiving a refund. Rather, confidentiality or non-disparagement was required as a condition of receiving a payment to settle a personal injury lawsuit. The Court is not suggesting that all lawsuit settlements are automatically immune from Civ. Code § 1748.50. Suppose, for example, a dissatisfied consumer, stonewalled in informal efforts to resolve his complaints, filed suit for a refund. In that circumstance, perhaps a settlement payment might properly be considered a refund subject to the statute. But no such facts are before the Court. Plaintiff undisputedly settled a personal injury claim. His complaint in the prior lawsuit claims standard personal injury damages. Plaintiff did not seek to recover the purchase price for his vehicle. (RJN, Ex. B, at ¶ 11.) Because Plaintiff’s settlement agreement is not covered by Civ. Code § 1748.50, Defendants’ demurrer is sustained. Further, because the Court does not see how this defect can be cured by amendment, leave to amend is denied.
10	CITY OF IRVINE, a Municipal corporation vs. ENTERPRISES LIMITED PARTNERSHIP, a California Limited Partnership 2026-01554211	Plaintiff’s Motion to Prejudgment Possession Before the Court are motions for prejudgment possession in five eminent domain cases arising from the City of Irvine’s planned improvement of the intersection of Jamboree Road and Barranca Parkway: 1. <i>City of Irvine v. ERD Enterprises Limited Partnership</i>, No. 26-01554211 2. <i>City of Irvine v. Corporate Park Property Owner’s Association, Inc.</i>, No. 26-01554947 3. <i>City of Irvine v. Thrifty Oil Co.</i>, No. 26-01554208 4. <i>City of Irvine v. Blackburg, Inc.</i>, No. 26-01554305 5. <i>City of Irvine v. 96 Corporate Park</i>, No. 26-01554983 The City’s motions in <i>Thrifty Oil</i> and <i>Blackburg</i> are opposed by Tesla, Inc., an alleged tenant of the properties at issue. Tesla’s oppositions are joined by Thrifty Oil and Blackburg, the property owners of record. The other three motions are unopposed. All five motions for prejudgment are DENIED WITHOUT PREJUDICE. <u>GROUND S FOR RULING</u> CCP § 1255.410(a) requires that a motion for prejudgment possession “state the date after which the plaintiff is seeking to take possession of the property.” None of the City’s five motions included this date. After Tesla pointed out this omission in its two oppositions, the City served a “Notice of Requested Date for Prejudgment Possession” in each of the five cases on September 3, 2026. Tesla contends the City’s omission of the date warrants denial of the two motions. The Court agrees. Moreover, because this defect is present in each of the five motions, all five must be denied. “‘The proceeding to condemn